

Smt. Afiya Khatoon v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 29 May 2023 · 2023:AHC:119022-DB · Writ - C No. 16430 of 2023 · **Petition disposed; notice withdrawn; fresh order under Supply Code.**

HEADNOTE

Writ challenging a provisional-assessment recovery notice disposed of as nothing survived once the Electricity Department withdrew the notice and undertook to pass a fresh order after hearing, strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Afiya Khatoon challenged a notice of provisional assessment dated 6 November 2019 issued by the Electricity Department and the recovery proceedings based on it. On 16 May 2023 the Court gave the Department time to obtain instructions, adjourned the writ to 29 May 2023, and restrained coercive action in the meantime. On the adjourned date counsel stated that the recovery notice had been withdrawn so that a fresh order could be passed after hearing her, and placed a communication sent by respondent no. 3 to the Tehsil authorities.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::16.5

Provisional assessment; fresh order after hearing

HOLDING

Where the Electricity Department withdraws the recovery notice on a provisional assessment and states that a fresh order will be passed after opportunity of hearing, nothing survives in the writ. The petition is disposed of with liberty to pass that fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3-4

PRINCIPLE TAGS

fresh-order-strictly-under-supply-code

The petition was disposed of with liberty to the Electricity Department to pass a fresh order, after hearing, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 6 NOVEMBER 2019 AND OF ANY FRESH LIABILITY

The notice stood withdrawn. The Court did not examine the assessment and left a fresh order, after hearing, to the Department. ¶ 2-4